

Case :- WRIT - C No. - 19919 of 2015

Petitioner :- Mohammad Zaheer

Respondent :- State Of U.P. & 4 Others

Counsel for Petitioner :- Adil Jamal, Gulrez Khan

Counsel for Respondent :- C.S.C., S.K. Yadav

Hon'ble Tarun Agarwala, J.

Hon'ble Amar Singh Chauhan, J.

The petitioner contends that on account of non-payment of the electricity bills, the electricity connection was disconnected in January, 2002 and since then the electricity connection has not been restored. A recovery certificate has now been issued for a sum of Rs.1,42,639/- though the original non-payment of the amount was to the tune of Rs.10,301/-.

The contention of the learned counsel for the petitioner is that the amount cannot be recovered as arrears of land revenue after a lapse of 12 years in view of paragraph 6.15 of the Electricity Supply Code, 2005. In support of his submission the learned counsel has placed reliance upon a decision of the Lucknow Bench of this Court in **Satya Narayan vs. U.P. Power Corporation Ltd. and others, 2013(5) ADJ 648.**

Let a counter affidavit be filed by Sri S.K.Yadav, the learned counsel for respondent Nos.2 and 3 within three weeks.

List for admission thereafter.

In the event the petitioner deposits a sum of Rs.45,000/- within three weeks from today and files a proof of such deposit before this Court on or before the next date of listing, the balance amount will not be recovered pursuant to the recovery citation dated 16.3.2015.

Order Date :- 9.4.2015

AKJ

(Amar Singh Chauhan, J.)

(Tarun Agarwala, J.)

Court No. - 35

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Hon'ble Bharati Sapru, J.

Hon'ble Mahboob Ali, J.

List revised. No one appears on behalf of the petitioner to press this matter.

The matter is dismissed in default.

Interim order, if any, stands discharged.

Order Date :- 28.7.2017

Ujjawal